

Bylaws of MyLife

Article 1 Organizational Information

Section 1: Organization Registration

The official name of the organization is MyLife registered with the state of Massachusetts, United States of America.

Section 2. Principal Office

The principal office of MyLife is located in Essex County, State of Massachusetts.

Section 3. Change of Address

The designation of the county, state or country of MyLife's principal office may be changed by amendment of these bylaws.

The Board of Directors may change the principal office from one location to another within the named state by noting the changed address and effective date below, and such changes of address shall not be deemed, nor require, an amendment of these bylaws:

New Address: _____

Dated: _____, 20____

Section 4. Other Offices

The organization may also have offices at such other places, within or without its state and country of incorporation, where it is qualified to do business, as its business and activities may require, and as the Board of Directors may, from time to time, designate.

Section 5. Current Board

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- Erik Jespersen, President
- Kenneth Williams, Vice-President
- Stephen Kenney, Technology Director
- Samuel Collins, Director
- Avani Patel, Director
- Russ Olivier, Director

Article 2

Nonprofit Purposes

Section 1. IRC Section 501(c)(3) Purposes

This organization is organized exclusively for one or more of the purposes as specified in Section 501(c)(3) of the Internal Revenue Code, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) of the Internal Revenue Code.

Section 2. Specific Objectives and Purposes

The specific objectives and purposes of this organization shall be:

The objective of MyLife is to provide a durable, enduring internet-enabled platform—that shall be free of any pecuniary charge to members—to collect and prepare for memorial showcase an individual’s cherished personal media and information to be shared in perpetuity.

Board Ratification Complete by EoQ1-2022

MyLife will deliver on this attention by:

- Developing free internet platform
 - MyLife: The capture, curation, and storage of personal media
 - OurLives: The showcase of memorials created inside of MyLife
 - Trusted Partner API Access:
- Offer education and awareness about the vision, principles, products of MyLife through:
 - Podcasts
 - Organization Websites
 - Social Media
 - Other outlets in alignment with this mission
- Build ecosystem of communities in alignment with mission
- Offering financial support to artistic, technical, educational or research endeavors in alignment with the mission
- Delivering lectures and educational presentations at industry events
- Developing initiatives at universities and colleges to connect students with opportunities to engage with and learn more about posterity archiving
- Requesting grant for special projects in accordance with the mission
- Fundraising through events and services
 - Direct donation campaigns
 - Charter member dues
 - NFT sales
 - OurLife gravesite in memorium donations

Article 3

Values & Principles

Complete by EoY-2022

These are the guiding principles of organization, codes of conduct and moral assertions to which guidance must adhere, more fully outlined in the Constitution.

- Digital Dignity, Equality and Security
- Ubiquitous Access
- Promote Greater:
 - Introspection and Self-Enlightenment
 - Empathy
 - Interconnectivity
 - Personal Satisfaction

Article 4 Membership

Section 1. Member Types

The Organization shall have a minimum of three (3) member types as outlined in the bylaws, which include: (Standard User) Members, Verified Members, and Charter Members. As outlined in the bylaws, dues are only required by Charter Members.

Section 2. Rights & Roles

For all member types, there are no access or content restrictions to our non-internal platforms, local statutes abiding.

- Members
 - Non-Voting standard class of user
 - No dues assessed
- Verified Members
 - Tier 1 Voting Rights
 - No dues assessed
- Charter Members
 - Tier 2 Voting Rights
 - Dues assessed, although can be waived for hardship

Article 5 Directors

Section 1. Number

The organization shall initially have a minimum of five (5) directors and collectively they shall be known as the Board of Directors.

Section 2. Qualifications

Directors shall be of the age of majority in the state or country of incorporation. Other qualifications for directors of this organization shall be as follows:

- Two (2) Directors with web development technical experience
- One (1) Director with professional experience in strategic marketing and economic development
- One (1) Directors with general business and nonprofit experience.

Section 3. Goals

The Board of Directors shall be versioned as MyLife grows, each instantiation adopting and scheduling a set of goals and minimum requirements to meet or exceed in order to advance MyLife to the next version of the Board. Asterisk (*) indicates a requirement for progression.

Complete by EoQ1-2022

Board of Directors: Version 1.00

- Board Composition
 - Diversity (specifics)
 - Expansion (min/max)*
 - Expertises
 - Marketing
 - Development
 - Technical
 - Web Development
 - Virtual Reality
 - Data Science
 - System Security
 - Artistic
 - UI/UX
 - 3D
 - Stability
 - Efficiency
 - Limited Organizational flight
- Organizational Accomplishments
 - Legal, Recognized Non-Profit Organization in United States
 -
 - First Draft Constitution adopted*
 - Development Target: \$x,xxx*
 - Revenue Target: \$x,xxx
 - Member Target: x,xxx members (by type?)

Section 4. Powers

Subject to the provisions of the laws of this state and any limitations in the Articles of Incorporation and these bylaws relating to action required or permitted to be taken or approved by the members, if any, of this organization, the activities and affairs of this organization shall be conducted, and all corporate powers shall be exercised by or under the direction of the Board of Directors.

Section 5. Duties

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It shall be the duty of the directors to:

Perform any and all duties imposed on them collectively or individually by law, by the Articles of Incorporation, or by these bylaws;

- Appoint and remove, employ and discharge, and, except as otherwise provided in these bylaws, prescribe the duties and fix the base rate of compensation for all officers, agents, and employees of MyLife;
- Supervise all officers, agents, and employees of MyLife to assure that their duties are performed properly;
- Attend board meetings at such times and places as outlined and required by these bylaws;
- Register their primary communication email addresses with the Secretary;
 - Notices of meetings emailed to them at such addresses shall be valid notices thereof
- Dues

Section 6. Term of Office

Each director shall hold office for a period of five (5) years and until their successor are elected.

Section 7. Compensation

Directors shall serve without compensation except that a reasonable fee may be paid to directors for attending special meetings of the board. In addition, they shall be allowed reasonable advancement or reimbursement of expenses incurred in the performance of their duties. Any payments to directors shall be approved in advance in accordance with this organization's conflict of interest policy, as set forth in **Article** 13 of these bylaws.

Section 8. Vacancies

Vacancies on the Board of Directors shall exist (1) on the death, resignation, or removal of any director, (2) whenever the number of authorized directors is increased.

Any director may resign effective upon giving written notice to the Chairperson of the Board, the President, or the Secretary, unless the notice specifies a later time for the effectiveness of such resignation. No director may resign if MyLife would then be left without a duly elected director or directors in charge of its affairs, except upon notice to the office of the attorney general or other appropriate agency of this state.

Directors may be removed from office, with or without cause, as permitted by and in accordance with the laws of this state.

Unless otherwise prohibited provisions of law, vacancies on the board may be filled by approval of the Board of Directors. If the number of directors then in office is less than a quorum, a vacancy on the board may be filled by approval of a majority of the directors then in office or by a sole remaining director. A person elected to fill a vacancy on the

board shall hold office until the next election of the Board of Directors or until their directorship is vacated as above.

Section 9. Nonliability of Directors

The directors shall not be personally liable for the debts, liabilities, or other obligations of MyLife.

Section 10. Indemnification by organization of Directors and Officers

The directors and officers of MyLife shall be indemnified by MyLife to the fullest extent permissible under the laws of this state.

Section 11. Insurance for Corporate Agents

Except as may be otherwise provided under provisions of law, the Board of Directors may adopt a resolution authorizing the purchase and maintenance of insurance on behalf of any agent of MyLife (including a director, officer, employee, or other agent of MyLife) against liabilities asserted against or incurred by the agent in such capacity or arising out of the agent's status as such, whether or not MyLife would have the power to indemnify the agent against such liability under the Articles of Incorporation, these bylaws, or provisions of law.

Article 6 Board Meetings

Section 1. Place of Meetings

Meetings shall be held at the office of the Chairperson of the Board unless otherwise provided by the board or at such other place as may be designated from time to time by resolution of the Board of Directors. A virtual attendance option providing both interactive video and audio of the proceedings must be afforded for all meetings.

Section 2. Regular Meetings

Regular meetings of Directors shall be held quarterly at 7:00 pm EST on the second Wednesday of the following months:

January, April, July, October

unless such day falls on a legal holiday, in which event the regular meeting shall be held at the same hour and place on the next business day.

At the regular meeting of directors held in July of even years, directors shall be elected by the Board of Directors. Voting for the election of directors shall be by written ballot. Each director shall cast one vote per candidate and may vote for as many candidates as the number of candidates to be elected to the board. The candidates receiving the highest

number of votes up to the number of directors to be elected shall be elected to serve on the board.

Section 3. Special Meetings

Special meetings of the Board of Directors may be called by the Chairperson of the Board, the President, the Vice-President, by any two directors. Such meetings shall be held at the principal office of MyLife or, if different, at the place designated by the person or persons calling the special meeting.

Section 4. Notice of Meetings

The following provisions shall govern the giving of notice for meetings of the Board of Directors:

- **Regular Meetings:** No notice need be given of any regular meeting of the Board of Directors.
- **Special Meetings.** At least one week prior notice shall be given by the Secretary of MyLife to each director of each special meeting of the board. Such notice may be oral or written, and may be given: personally, by first class mail, by telephone, or by electronic mail, and shall state the place, date, and time of the meeting and the agenda proposed to be acted upon at the meeting.
- **Waiver of Notice.** Whenever any notice of a meeting is required to be given to any director of this organization under provisions of the Articles of Incorporation, these bylaws, or the law of this state, a waiver of notice in writing signed by the director, whether before or after the time of the meeting, shall be equivalent to the giving of such notice.

Section 5. Meeting Agenda

The proposed agenda for regular or special meetings shall be provided by the Secretary a minimum of a week in advance of the start date and time. All directors may contribute items for discussion and deliberation up to 24 hours before the meeting start.

Section 6. Quorum for Meetings

A quorum shall consist of a majority of the members of the Board of Directors in attendance, with a minimum of four members in attendance.

Except as otherwise provided under these bylaws, or provisions of law, no business shall be considered by the board at any meeting at which the required quorum is not present, and the only motion which the Chairperson shall entertain at such meeting is a motion to adjourn.

Section 7. Majority Action as Board Action

Every act or decision done or made by a majority of the directors present at a meeting duly held at which a quorum is present is the act of the Board of Directors, unless the provisions of law require a greater percentage or different voting rules for approval of a matter by the board.

Section 8. Conduct of Meetings

Meetings of the Board of Directors shall be presided over by the Chairperson of the Board, or, if no such person has been so designated, or in his or her absence, the President of MyLife, or in their absence, by the Vice-President, or in the absence of each of these persons, by a Chairperson chosen by a majority of the directors present at the meeting. The Secretary shall act as secretary of all meetings of the board, provided that, in their absence, the presiding officer shall appoint another person to act as secretary of the meeting.

Meetings shall be governed by Robert's Rules, insofar as such rules are not inconsistent with or in conflict these bylaws, or with provisions of law.

All meetings shall be recorded (video and audio), transcribed (can be by AI, but must be reviewed), and archived in addition to the creation of meeting minutes.

Article 7 Officers

Section 1. Designation of Officers

The officers of MyLife shall be: a President, a Technology Director, a Secretary, and a Treasurer. The organization may also have a Chairperson of the Board and one or more Vice-Presidents, Assistant Secretaries, Assistant Treasurers, and other such officers with such titles as may be determined by the Board of Directors and outlined by amendment to these bylaws.

Section 2. Qualifications

Any person may serve as officer of this organization.

Section 3. Election and Term of Office

Officers shall be elected by the Board of Directors, at any time, and each officer shall hold office until he or she resigns or is removed or is otherwise disqualified to serve, or until his or her successor shall be elected and qualified, whichever occurs first.

Section 4. Removal and Resignation

Any officer may be removed, either with or without cause, by the Board of Directors, at any time. Any officer may resign at any time by giving written notice to the Board of Directors or to the President or Secretary of MyLife. Any such resignation shall take effect at the date of receipt of such notice or at any later date specified therein, and, unless otherwise specified therein, the acceptance of such resignation shall not be necessary to make it effective. The above provisions of this section shall be superseded by any conflicting terms of a contract which has been approved or ratified by the Board of Directors relating to the employment of any officer of MyLife.

Section 5. Vacancies

Any vacancy caused by the death, resignation, removal, disqualification, or otherwise, of any officer shall be filled by the Board of Directors. In the event of a vacancy in any office other than that of President, such vacancy may be filled temporarily by appointment by the President until such time as the board shall fill the vacancy.

Vacancies occurring in offices of officers appointed at the discretion of the board may or may not be filled as the board shall determine.

Section 6. Duties of President

The President shall be the Chief Executive Officer of MyLife and shall, subject to the control of the Board of Directors, supervise and control the affairs of MyLife and the activities of the officers. He or she shall perform all duties incident to his or her office and such other duties as may be required by law, by the Articles of Incorporation, by the Constitution, or by these bylaws, or which may be prescribed from time to time by the Board of Directors. Except as otherwise expressly provided by law, by the Articles of Incorporation, by the Constitution, or by these bylaws, they shall, in the name of MyLife, execute such deeds, mortgages, bonds, contracts, checks, or other instruments which may from time to time be authorized by the Board of Directors. Unless another person is specifically appointed as Chairperson of the Board of Directors, the President shall preside at all meetings of the Board of Directors.

Section 7. Duties of Vice-President

In the absence of the President, or in the event of his or her inability or refusal to act, the Vice-President shall perform all the duties of the President, and when so acting shall have all the powers of, and be subject to all the restrictions on, the President.

The Vice-President shall have other powers and perform such other duties as may be prescribed by law, by the Articles of Incorporation, by the Constitution or by these bylaws, or as may be prescribed by the Board of Directors.

Section 8. Duties of Secretary

The secretary shall:

- a) Certify and keep at the principal office of MyLife the original, or a copy, of these bylaws as amended or otherwise altered to date.
- b) Keep at the principal office of MyLife or at such other place as the board may determine, a book of minutes of all meetings of the directors, and, if applicable, meetings of committees of directors and of members, recording therein the time and place of holding, whether regular or special, how called, how notice thereof was given, the names of those present or represented at the meeting, and the proceedings thereof.
- c) Ensure that the minutes of meetings of MyLife, any written consents approving action taken without a meeting, and any supporting documents pertaining to meetings, minutes, and consents shall be contemporaneously recorded in the corporate records of this organization. "Contemporaneously" in this context means that the minutes, consents, and supporting documents shall be recorded in the records of this organization by the later of (1) the next meeting of the board,

- committee, membership, or other body for which the minutes, consents, or supporting documents are being recorded, or (2) sixty (60) days after the date of the meeting or written consent.
- d) See that all notices are duly given in accordance with the provisions of these bylaws or as required by law.
 - e) Be custodian of the records and of the seal of MyLife and affix the seal, as authorized by law or the provisions of these bylaws, to duly executed documents of MyLife.
 - f) Maintain access and security for the primary database of organizational members, and, in the case where any membership has been refused or resigned, he or she shall record such fact in the membership book together with the date on which such membership was terminated.
 - g) Exhibit at all reasonable times to any director of MyLife, or to his or her agent or attorney, on request therefor, the bylaws, public elements of the membership database, and the minutes of the proceedings of the directors of MyLife.

In general, perform all duties incident to the Office of Secretary and such other duties as may be required by law, by the Articles of Incorporation, by the Constitution, or by these bylaws, or which may be assigned to them from time to time by the Board of Directors.

Section 9. Duties of Treasurer

The treasurer shall:

- a) Have charge and custody of, and be responsible for, all funds and securities of MyLife, and deposit all such funds in the name of MyLife in such banks, trust companies, or other depositories as shall be selected by the Board of Directors.
- b) Receive, and give receipt for, monies due and payable to MyLife from any source whatsoever.
- c) Disburse, or cause to be disbursed, the funds of MyLife as may be directed by the Board of Directors, taking proper vouchers for such disbursements.
- d) Keep and maintain adequate and correct accounts of MyLife's properties and business transactions, including accounts of its assets, liabilities, receipts, disbursements, gains, and losses.
- e) Exhibit at all reasonable times the books of account and financial records to any director of MyLife, or to his or her agent or attorney, on request therefor.
- f) Render to the President and directors, whenever requested, an account of any or all of his or her transactions as treasurer and of the financial condition of MyLife.
- g) Prepare, or cause to be prepared, and certify, or cause to be certified, the financial statements to be included in any required reports.

In general, perform all duties incident to the office of treasurer and such other duties as may be required by law, by the Articles of Incorporation, by the Constitution, by these bylaws, or which may be assigned to them from time to time by the Board of Directors.

Section 10. Compensation

The salaries of the officers, if any, shall be fixed from time to time by resolution of the Board of Directors. In all cases, any salaries received by officers of this organization shall

be reasonable and given in return for services actually rendered to or for MyLife. All officer salaries shall be approved in advance in accordance with the Conflict of Interest policy, as set forth in Article 13 of these bylaws.

Article 8 Elections

The first board, and its officers, has been unanimously endorsed and voted into office by the initial roster of individuals registered as directors with the state of Massachusetts.

Article 9 Fiscal Policies

Section 1. Fiscal Year

The fiscal year for all business transactions of shall be from January 1 through December 31.

Section 2. Disbursements

Disbursements shall be made only in accordance with a specific authorization, or a general budget approved by the Board of Directors and on such terms as may be established by the board.

Section 3. Audits

There shall be an annual audit of MyLife by an independent certified public accountant. The independent auditor shall be appointed annually by the board. Fees for the independent auditor shall be set by the board. No less frequently than every five years, the Audit Committee shall recommend whether a new independent auditor should be selected. The Board of Directors may direct the audit of offices, programs and activities of MyLife at such times and in such a manner as the board may specify.

Article 10 Execution of Instruments, Deposits, and Funds

Section 1. Execution of Instruments

The Board of Directors, except as otherwise provided in these bylaws, may by resolution authorize any officer or agent of MyLife to enter into any contract or execute and deliver any instrument in the name of and on behalf of MyLife, and such authority may be general or confined to specific instances. Unless so authorized, no officer, agent, or employee shall have any power or authority to bind MyLife by any contract or engagement or to pledge its credit or to render it liable monetarily for any purpose or in any amount.

Section 2. Checks and Notes

Except as otherwise specifically determined by resolution of the Board of Directors, or as otherwise required by law, checks, drafts, promissory notes, orders for the payment of money, and other evidence of indebtedness of MyLife shall be signed by the treasurer and countersigned by the President of MyLife.

Section 3. Deposits

All funds of MyLife shall be deposited from time to time to the credit of MyLife in such banks, trust companies, or other depositories as the Board of Directors may select.

Section 4. Gifts

The Board of Directors may accept on behalf of MyLife any contribution, gift, bequest, or devise for the nonprofit purposes of the organization.

Article 11 Corporate Records, Reports, and Seal

Section 1. Maintenance of Corporate Records

The organization shall store any physical records at its principal office, and all official corporate records must be available electronically through an official cloud-enabled storage service. The following records must be stored, versioned and available for access by the Secretary of MyLife:

- Minutes and full recordings of all meetings of directors, committees of the board, and, if this organization has members, of all official meetings of members;
- Adequate and correct books and records of account, including accounts of its properties and business transactions and accounts of its assets, liabilities, receipts, disbursements, gains, and losses;
- A record of its members, if any, indicating their names and non-private contact information, and the class of membership held by each member and the termination date of any membership;
- A copy of MyLife's Articles of Incorporation, Constitution, and bylaws as amended to date, which shall be open to on-demand inspection by the members of MyLife;
- Any other official documents outlined in the Articles of Incorporation, the Constitution, or the bylaws.

Section 2. Corporate Seal

The Board of Directors may adopt, use, and at will alter, a corporate seal. Such seal shall be kept at the principal office of MyLife. Failure to affix the seal to corporate instruments, however, shall not affect the validity of any such instrument.

Section 3. Directors' Inspection Rights

Every director shall have the absolute right at any reasonable time to inspect and copy all books, records, and documents of every kind and to inspect the physical properties of

MyLife and shall have such other rights to inspect the books, records, and properties of this organization as may be required under the Articles of Incorporation, the Constitution, other provisions of these bylaws, and provisions of law.

Section 4. Periodic Report

The board shall cause any annual or periodic report required under law to be prepared and delivered to an office of this state or to the members, if any, of this organization, to be so prepared and delivered within the time limits set by law.

Article 12 IRC 501(c)(3) Tax Exemption Provisions

Section 1. Limitations on Activities

No substantial part of the activities of this organization shall be the carrying on of propaganda, or otherwise attempting to influence legislation (except as otherwise provided by Section 501(h) of the Internal Revenue Code), and this organization shall not participate in, or intervene in (including the publishing or distribution of statements), any political campaign on behalf of, or in opposition to, any candidate for public office.

Notwithstanding any other provisions of these bylaws, this organization shall not carry on any activities not permitted to be carried on (a) by a organization exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code, or (b) by a organization, contributions to which are deductible under Section 170(c)(2) of the Internal Revenue Code.

Section 2. Prohibition Against Private Inurement

No part of the net earnings of this organization shall inure to the benefit of, or be distributable to, its members, directors or trustees, officers, or other private persons, except that MyLife shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes of this organization.

Section 3. Distribution of Assets

Upon the dissolution of this organization, its assets remaining after payment, or provision for payment, of all debts and liabilities of this organization, shall be distributed for one or more exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code or shall be distributed to the federal government, or to a state or local government, for a public purpose. Such distribution shall be made in accordance with all applicable provisions of the laws of this state. Such dissolution shall be undertaken in accordance with Massachusetts General Law Chapter 180.

Article 13 Conflict of Interest and Compensation Approval Policies

Section 1. Purpose of Conflict of Interest Policy

The purpose of this conflict of interest policy is to protect this tax-exempt organization's interest when it is contemplating entering into a transaction or arrangement that might benefit the private interest of an officer or director of MyLife or any "disqualified person" as defined in Section 4958(f)(1) of the Internal Revenue Code and as amplified by Section 53.4958-3 of the IRS Regulations and which might result in a possible "excess benefit transaction" as defined in Section 4958(c)(1)(A) of the Internal Revenue Code and as amplified by Section 53.4958 of the IRS Regulations. This policy is intended to supplement but not replace any applicable state and federal laws governing conflict of interest applicable to nonprofit and charitable organizations.

Section 2. Definitions

Interested Person. Any director, principal officer, member of a committee with governing board delegated powers, or any other person who is a "disqualified person" as defined in Section 4958(f)(1) of the Internal Revenue Code and as amplified by Section 53.4958-3 of the IRS Regulations, who has a direct or indirect financial interest, as defined below, is an interested person.

Financial Interest. A person has a financial interest if the person has, directly or indirectly, through business, investment, or family:

- An ownership or investment interest in any entity with which MyLife has a transaction or arrangement;
- A compensation arrangement with MyLife or with any entity or individual with which the organization has a transaction or arrangement; or
- A potential ownership or investment interest in, or compensation arrangement with, any entity or individual with which MyLife is negotiating a transaction or arrangement.

Compensation includes direct and indirect remuneration as well as gifts or favors that are not insubstantial.

A financial interest is not necessarily a conflict of interest. Under Section 3, item c, a person who has a financial interest may have a conflict of interest only if the appropriate governing board or committee decides that a conflict of interest exists.

Section 3. Conflict of Interest Avoidance Procedures

- a) **to Disclose.** In connection with any actual or possible conflict of interest, an interested person must disclose the existence of the financial interest and be given the opportunity to disclose all material facts to the directors and members of committees with governing board delegated powers considering the proposed transaction or arrangement.
- b) **Determining Whether a Conflict of Interest Exists.** After disclosure of the financial interest and all material facts, and after any discussion with the interested person, he/she shall leave the governing board or committee meeting while the determination of a conflict of interest is discussed and voted upon. The remaining board or committee members shall decide if a conflict of interest exists.

- c) **Procedures for Addressing the Conflict of Interest.** An interested person may make a presentation at the governing board or committee meeting, but after the presentation, he/she shall leave the meeting during the discussion of, and the vote on, the transaction or arrangement involving the possible conflict of interest
 - a. The Chairperson of the governing board or committee shall, if appropriate, appoint a disinterested person or committee to investigate alternatives to the proposed transaction or arrangement.
 - b. After exercising due diligence, the governing board or committee shall determine whether MyLife can obtain with reasonable efforts a more advantageous transaction or arrangement from a person or entity that would not give rise to a conflict of interest.
 - c. If a more advantageous transaction or arrangement is not reasonably possible under circumstances not producing a conflict of interest, the governing board or committee shall determine by a majority vote of the disinterested directors whether the transaction or arrangement is in MyLife's best interest, for its own benefit, and whether it is fair and reasonable. In conformity with the above determination, it shall make its decision as to whether to enter into the transaction or arrangement.
- d) **Violations of the Conflicts of Interest Policy.** If the governing board or committee has reasonable cause to believe a member has failed to disclose actual or possible conflicts of interest, it shall inform the member of the basis for such belief and afford the member an opportunity to explain the alleged failure to disclose.
 - a. If, after hearing the member's response and after making further investigation as warranted by the circumstances, the governing board or committee determines the member has failed to disclose an actual or possible conflict of interest, it shall take appropriate disciplinary and corrective action.

Section 4. Records of Board and Board Committee Proceedings

The minutes of meetings of the governing board and all committees with board delegated powers shall contain:

- a) The names of the persons who disclosed or otherwise were found to have a financial interest in connection with an actual or possible conflict of interest, the nature of the financial interest, any action taken to determine whether a conflict of interest was present, and the governing board's or committee's decision as to whether a conflict of interest in fact existed.
- b) The names of the persons who were present for discussions and votes relating to the transaction or arrangement, the content of the discussion, including any alternatives to the proposed transaction or arrangement, and a record of any votes taken in connection with the proceedings.

Section 5. Compensation Approval Policies

A voting member of the governing board who receives compensation, directly or indirectly, from MyLife for services is precluded from voting on matters pertaining to that member's compensation.

A voting member of any committee whose jurisdiction includes compensation matters and who receives compensation, directly or indirectly, from MyLife for services is precluded from voting on matters pertaining to that member's compensation.

No voting member of the governing board or any committee whose jurisdiction includes compensation matters and who receives compensation, directly or indirectly, from MyLife, either individually or collectively, is prohibited from providing information to any committee regarding compensation.

When approving compensation for directors, officers and employees, contractors, and any other compensation contract or arrangement, in addition to complying with the conflict of interest requirements and policies contained in the preceding and following sections of this article as well as the preceding paragraphs of this section of this article, the board or a duly constituted compensation committee of the board shall also comply with the following additional requirements and procedures:

- a) The terms of compensation shall be approved by the board or compensation committee prior to the first payment of compensation;
- b) All members of the board or compensation committee who approve compensation arrangements must not have a conflict of interest with respect to the compensation arrangement as specified in IRS Regulation Section 53.4958-6(c)(iii), which generally requires that each board member or committee member approving a compensation arrangement between this organization and a "disqualified person" (as defined in Section 4958(f)(1) of the Internal Revenue Code and as amplified by Section 53.4958-3 of the IRS Regulations):
 - a. Is not the person who is the subject of the compensation arrangement, or a family member of such person;
 - b. Is not in an employment relationship subject to the direction or control of the person who is the subject of the compensation arrangement;
 - c. Does not receive compensation or other payments subject to approval by the person who is the subject of the compensation arrangement;
 - d. Has no material financial interest affected by the compensation arrangement; and
 - e. Does not approve a transaction providing economic benefits to the person who is the subject of the compensation arrangement, who in turn has approved or will approve a transaction providing benefits to the board or committee member.
- c) The board or compensation committee shall obtain and rely upon appropriate data as to comparability prior to approving the terms of compensation. Appropriate data may include the following:
 - a. Compensation levels paid by similarly situated organizations, both taxable and tax-exempt, for functionally comparable positions. "Similarly situated" organizations are those of a similar size, purpose, and with similar resources;

- b. The availability of similar services in the geographic area of this organization;
 - c. Current compensation surveys compiled by independent firms;
 - d. Actual written offers from similar institutions competing for the services of the person who is the subject of the compensation arrangement.
As allowed by IRS Regulation 4958-6, if this organization has average annual gross receipts (including contributions) for its three prior tax years of less than \$1 million, the board or compensation committee will have obtained and relied upon appropriate data as to comparability if it obtains and relies upon data on compensation paid by three comparable organizations in the same or similar communities for similar services.
- d) The terms of compensation and the basis for approving them shall be recorded in written minutes of the meeting of the board or compensation committee that approved the compensation. Such documentation shall include:
- a. The terms of the compensation arrangement and the date it was approved;
 - b. The members of the board or compensation committee who were present during debate on the transaction, those who voted on it, and the votes cast by each board or committee member;
 - c. The comparability data obtained and relied upon and how the data was obtained;
 - d. If the board or compensation committee determines that reasonable compensation for a specific position in this organization or for providing services under any other compensation arrangement with this organization is higher or lower than the range of comparability data obtained, the board or committee shall record in the minutes of the meeting the basis for its determination;
 - e. If the board or committee makes adjustments to comparability data due to geographic area or other specific conditions, these adjustments and the reasons for them shall be recorded in the minutes of the board or committee meeting;
 - f. Any actions taken with respect to determining if a board or committee member had a conflict of interest with respect to the compensation arrangement, and if so, actions taken to make sure the member with the conflict of interest did not affect or participate in the approval of the transaction (for example, a notation in the records that after a finding of conflict of interest by a member, the member with the conflict of interest was asked to, and did, leave the meeting prior to a discussion of the compensation arrangement and a taking of the votes to approve the arrangement);
 - g. The minutes of board or committee meetings at which compensation arrangements are approved must be prepared before the later of the date of the next board or committee meeting or 60 days after the final actions of the board or committee are taken with respect to the approval of the compensation arrangements. The minutes must be reviewed and approved by the board and committee as reasonable, accurate, and complete within a reasonable period thereafter, normally prior to or at the next board or

committee meeting following final action on the arrangement by the board or committee.

Section 6. Annual Statements

Each director, principal officer, and member of a committee with governing board delegated powers shall annually sign a statement which affirms such person:

- a) Has received a copy of the conflicts of interest policy;
- b) Has read and understands the policy;
- c) Has agreed to comply with the policy; and
- d) Understands MyLife is charitable and in order to maintain its federal tax exemption it must engage primarily in activities which accomplish one or more of its tax-exempt purposes.

Section 7. Periodic Reviews

To ensure MyLife operates in a manner consistent with charitable purposes and does not engage in activities that could jeopardize its tax-exempt status, periodic reviews shall be conducted. The periodic reviews shall, at a minimum, include the following subjects:

- a) Whether compensation arrangements and benefits are reasonable, based on competent survey information, and the result of arm's-length bargaining.
- b) Whether partnerships, joint ventures, and arrangements with management organizations conform to MyLife's written policies, are properly recorded, reflect reasonable investment or payments for goods and services, further charitable purposes, and do not result in inurement, impermissible private benefit, or in an excess benefit transaction.

Section 8. Use of Outside Experts

When conducting the periodic reviews as provided for in Section 7 of this article, MyLife may, but need not, use outside advisors. If outside experts are used, their use shall not relieve the governing board of its responsibility for ensuring periodic reviews are conducted.

Article 14 Indemnification

The organization shall indemnify to the maximum extent permitted by law any person who was or is a party to any proceeding (other than an action by, or in the right of, MyLife), by reason of the fact that they are or were a director or officer of MyLife. Expenses incurred by a director or an officer in defending a civil or criminal proceeding may be paid by MyLife in advance of the final disposition of such proceeding upon receipt of an undertaking by or on behalf of such director or officer to repay such amount if he or she is ultimately found not to be entitled to indemnification by MyLife.

The organization may purchase and maintain insurance on behalf of any person who is or was a director, officer, employee, or agent of MyLife, or who is or was serving at the request of the organization as a director, trustee, officer, employee, or agent of another

corporation, partnership, joint venture, or trust against any liability asserted against them and incurred by them in any such capacity, or arising out of his or her status as such, whether or not MyLife would have the power to indemnify them against such liability under law.

Article 15

Amendment of Bylaws

Section 1. Amendment

Subject to the power of the members, if any, of this organization to adopt, amend, or repeal the bylaws of this organization and except as may otherwise be specified under provisions of law, these bylaws, or any of them, may be altered, amended, or repealed and new bylaws adopted by approval of the Board of Directors.

Article 16

Construction and Terms

If there is any conflict between the provisions of these bylaws and the Articles of Incorporation of this organization, the provisions of the Articles of Incorporation shall govern.

Should any of the provisions or portions of these bylaws be held unenforceable or invalid for any reason, the remaining provisions and portions of these bylaws shall be unaffected by such holding.

All references in these bylaws to the Articles of Incorporation, or other founding document of this organization, shall be to the corresponding documents filed with the Secretary of State of Massachusetts.

All references in these bylaws to a section or sections of the Internal Revenue Code shall be to such sections of the Internal Revenue Code of 1986 as amended from time to time, or to corresponding provisions of any future federal tax code.

ADOPTION OF BYLAWS

We, the undersigned, are all of the initial directors or incorporators of this organization, and we consent to, and hereby do, adopt the foregoing bylaws, consisting of nineteen (19) preceding pages, as the bylaws of this organization.

Signed on December 19, 2021, by MyLife President Erik Jespersen

A stylized, handwritten signature in black ink, consisting of a large, sweeping loop with a smaller, more complex mark at the top left.

—on behalf of Board of Directors—

Erik Jespersen, *President and Director*

Kenneth Williams, *Vice-President and Director*

Samuel Collins, *Treasurer and Director*

Stephen Kenney, *Director of Technology*

Russ Olivier, *Director*